

3. 9:00 AM CASE NUMBER: C24-02212
CASE NAME: TROY ANDERSON VS. MARK PETERSON
***HEARING ON MOTION IN RE: REQUEST FOR ORDER FOR LEAVE TO REFILE CIVIL COMPLAINT**
FILED BY: ANDERSON, TROY
TENTATIVE RULING:

Before the Court is Plaintiff Troy Anderson's Motion for Order for Leave to Refile Civil Complaint.

Procedural Background

Plaintiff filed his Complaint on August 21, 2024. Defendants filed a Demurrer to Complaint on November 6, 2024. On February 24, 2025, the Court issued a tentative ruling sustaining the demurrer in full and granting Plaintiff leave to amend. The tentative ruling was not contested, so it became the Order of the Court at 4:00 p.m. on February 24, 2025. (Local Rule 3.43 (2).)

On March 20, 2025, Defendants filed and served a Notice of Entry of Order confirming the Court's ruling. The Order made clear that "Plaintiff's amended complaint, if any, is due on or before April 1, 2025."

On June 3, 2025, Defendants appeared ex parte seeking dismissal of this matter due to Plaintiff's failure to timely file his amended complaint. The Court granted the request and executed the Order "dismissing the entire action with prejudice" on June 3, 2025. Notice of entry of the Order was filed and served on June 4.

Over nine months later, on March 25, 2026, Plaintiff filed the instant motion seeking leave to 'refile' his civil complaint.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision that relates to times when an attorney admits fault in causing the default. That provision is not at issue in this matter.

Plaintiff also makes reference, generally, to his “due process” rights to have his case heard on its merits.

Analysis

Plaintiff argues that his failure to timely file his amended complaint was due to ‘mistake, inadvertence, surprise, or excusable neglect,’ and he should be relieved from the dismissal under Code of Civil Procedure section 473(b).

1. Timeliness

A motion to set aside a dismissal “shall be made within a reasonable time, *in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.” (Cal. Code Civ. Proc. § 473 (b) emphasis added.) The “six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed.” (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318; see also, *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147.)

The Notice of Entry of Order dismissing “the entire action with prejudice” was entered and served on June 4, 2025. Accordingly, any motion to set aside that order was required to be filed no later than December 4, 2025.

Plaintiff filed the instant motion on March 25, 2026 – over three months too late. As noted above, the six-month deadline is jurisdictional. The “court may not consider a motion for relief made after that period has elapsed.” (*Manson*, supra, 176 Cal.App.4th at 42.) Accordingly, Plaintiff’s motion must be denied.

2. Merits

Even if not barred by the failure to comply with the jurisdictional deadline or if considered based on his “due process” arguments, the Court would deny the motion. Plaintiff had a full and fair opportunity to be heard on the demurrer proceedings. He was served with the demurrer papers. See Proof of Service filed November 6, 2024. He filed opposition papers on February 3, 2025. As noted in the initial tentative ruling, the Court considered the arguments raised in opposition by Plaintiff.

Plaintiff has not shown that the dismissal ultimately entered was due to any mistake, inadvertence, surprise, or excusable neglect on his part. Nor has he shown denial of any fundamental due process rights that would be a basis for setting aside the prior dismissal.

Conclusion

Plaintiff’s Motion for Order for Leave to Refile Civil Complaint is **DENIED**.

4. 9:00 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

***HEARING ON MOTION IN RE: EXTENSION OF TIME TO OBTAIN A DEFAULT JUDGMENT**

FILED BY: NFP CORPORATE SERVICES (CA), INC.

TENTATIVE RULING:

Defendants and cross-complainants NFP Corporate Services (CA), Inc. and NFP CA Insurance Services, Inc. ("NFP Defendants") filed a Motion for an Extension of Time to Obtain a Default Judgment against Cross-Defendants on March 11, 2026 (the "Motion for Extension of Time"). The Motion for Extension of Time was set for hearing on August 3, 2026.

Background

The NFP Defendants filed a Cross-Complaint against Corbin Blume and Jaguar Energy, LLC (the "Cross-Defendants") on January 8, 2026. See Cross-Complaint filed January 8, 2026; see Declaration of Brittany Rogers filed March 11, 2026 ("Rogers Decl."), ¶4 and **Exhibit 2** thereto. The Cross-Complaint was served on the Cross-Defendants. *Id.* at ¶¶5-7.

Defaults were entered against the Cross-Defendants on February 17, 2026. *Id.* at ¶8.

Analysis

The NFP Defendants seek an order extending the deadline to seek and obtain entry of a default judgment against the defaulted Cross-Defendants, pursuant to Rule 3.110 of the California Rules of Court (CRC). See CRC 3.110(h) ("When a default is entered, the party who requested the entry of default must obtain a default judgment against the defaulting party within 45 days after the default was entered, unless the court has granted an extension of time.").

The motion is unopposed.

The Court notes that there is now pending a separate Cross-Complaint against the same Cross-Defendants by defendant and cross-complainant Theodore Zouzounis.

Disposition

The Court finds and rules as follows:

1. The Motion for Extension of Time is GRANTED.
2. The Court shall enter the proposed order lodged with the moving papers.

5. 9:00 AM CASE NUMBER: C24-02589

CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER

***HEARING ON MOTION IN RE: MONETARY SANCTIONS**

FILED BY:

TENTATIVE RULING:

Plaintiff Michael Hoffman ("Plaintiff") filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants.